

HOUSE BILL 1684

By Hawk

AN ACT to amend Tennessee Code Annotated, Title 55,
Chapter 8, relative to personal delivery devices.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-8-101, is amended by deleting subdivision (53)(B) and substituting instead:

(B) Is operated primarily on sidewalks, crosswalks, bicycle lanes or paths, shoulders, the area adjacent to the right-hand edge or curb of the roadway, parking lots, or a similar area;

SECTION 2. Tennessee Code Annotated, Section 55-8-209(b), is amended by deleting the period (.) at the end of the subsection and substituting instead the language "and in other areas, up to twenty (20) miles per hour."

SECTION 3. Tennessee Code Annotated, Section 55-8-209(e), is amended by deleting the first sentence, which presently reads:

Personal delivery devices may be prohibited by local resolutions or ordinances if the local government determines that the prohibition is necessary, in the interest of public safety.

and substituting instead:

Personal delivery devices may be regulated by local resolutions or ordinances if the local government determines that the regulation is necessary, in the interest of public safety. A regulation adopted by a local government must not be inconsistent with this section.

SECTION 4. Tennessee Code Annotated, Section 55-8-209, is amended by inserting the following as a new subsection (a) and redesignating existing subsection (a) and the remaining subsections accordingly:

(a) Notwithstanding a law to the contrary, a person or entity may operate a personal delivery device on a sidewalk, crosswalk, bicycle lane or path, shoulder, the area adjacent to the right-hand edge or curb of the roadway, parking lot, or a similar area in this state. A personal delivery device has all of the rights and is subject to all of the duties under this chapter and chapter 10, parts 1-5 of this title that are applicable to a pedestrian when operated in a pedestrian area or a bicyclist when operated in all other areas, except as to those provisions that by their nature can have no application or that would place an unreasonable burden on the operation of the personal delivery device.

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it.